

17. S-PR-0013944 In Re the Estate of O'Leary, Timothy Patrick

Appearance is required for hearing on amended petition.

The petition does not sufficiently state a legal basis for relief; it is recommended the petition be denied, as follows:

Prob.C. § 21700, cited in the caption and in the petition, does not establish a procedure to petition for relief. Instead, that section establishes standards for proving a promise to make a devise or other facts. Moreover, the verified petition does not appear to satisfy any provision of § 21700 to prove a promise to grant a life estate in the Auburn property to petitioner.

The petition does not show legal grounds for relief under Prob.C. § 850 and, if petitioner were to proceed under that section, is not supported by any notice or service. See Prob.C. § 851.

The petition does not show legal grounds for relief under Prob.C. § 17200 and, if petitioner were to proceed under that section, is not supported by any notice or service. See Prob.C. § 17203. If the court were to construe the petition as a § 17200 petition, it would be recommended the petition be denied under Prob.C. § 17202 as unnecessary for the protection of the interests of petitioner. Even if the court were to find that the trust § 6.02 terms were applicable to the Auburn property, § 6.02 grants trustee certain discretionary authority but does not give a beneficiary an enforceable right or estate in property. See trust §§ 6.02 and 13.03(r).

The petition does not show legal grounds for an action on a creditor claim against decedent's estate. No creditor claim has been rejected by a personal representative of the estate of settlor. Rejection of a creditor claim is a precondition to bringing suit against the estate. Prob.C. § 9351.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.2.1.

18. S-PR-0013949 In Re the Estate of Fagan, Merlin L. Jr.

Petition to administer estate is recommended for approval as prayed.

19. S-PR-0014061 In Re the Estate of Triolo, Kristin Deann

Missing notice of hearing and service of notice of hearing for amended spousal property petition. Amended petition requires complete re-noticing. C.R.C. 7.53.

Missing copy of the will attached to the petition. See ¶ 4c. ¶ 11 implies the will is a pourover will; if all assets pass to decedent's living trust, the will precludes spousal property relief as no assets pass from the estate to the surviving spouse.

Missing Attachment 7 (see ¶ 7), the facts supporting the requested relief.

Clarification is needed: petitioner now requests only relief under §§ 1a & 7a—determination of decedent's separate and community interests passing to survivor. Petitioner does not pray for any confirmation of his community interest (see unused §§ 1b & 7b). Attachment 7a must include only decedent's community property and may not include any property of survivor; as filed, Attachment 7a refers only to "decedent's interest" without identifying any separate or community interest in the listed property. Note that any community interest of decedent is limited to no more than an undivided 1/2 interest.

20. S-PR-0014147 In Re the Estate of Williams, Roy Bobby

Missing relationship(s) of persons listed in § 9 to decedent.

Attachment 7 is insufficient to establish that the subject property is community property. Petitioner admits the property was obtained as a separate asset and record title remains in decedent individually. The form of title presumption of Evid.C. § 662 controls over any community presumption of Fam.C. § 706, although both are rebuttable. In re Brace (2020) 9 Cal.5th 903, 934; Estate of Wall (2021) 68 Cal.App.5th 168. Here, petitioner admits the form of title is decedent's separate property. Petitioner offers insufficient evidence of transmutation of title: separate property may be pledged as collateral for a community indebtedness without any transmutation. Petitioner implies the marital community should be entitled to Moore-Marsden credits, but offers no proposed calculation of such credits.

Attachment 7a fails to describe only decedent's separate and community interests which petitioner claims are property passing to her. There is no request for the companion relief of confirming petitioner's community property interests (see unused §§ 1b & 7b). Note that any community interest of decedent is limited to no more than an undivided 1/2 interest.

21. S-PR-0014148 In Re the Estate of Mathew, Gary Michael

Missing notice of hearing for petition to administer estate. Missing service of notice of hearing. Missing publication of notice of hearing.

Note: missing signed Duties form (D147). Clerk cannot issue letters until signed Duties form is filed.

22. S-PR-0014149 In Re the Estate of Osborne, Elizabeth

Calendar notes are not yet available for this matter. Please check back for updated notes.